

## Tentative Rulings for June 8, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary  
Carol Delfosse-Kidd at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                   | HEARING NAME                                                                                                  |
|-------------|-----------------------------|---------------------------------------------------------------------------------------------------------------|
| CVPS2500563 | CAPITAL ONE N.A. VS KARROLL | MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CAPITAL ONE N.A. |

**Tentative Ruling:**

Motion to Vacate Dismissal and Enter Judgment per Terms of Stipulation GRANTED.

Dismissal pursuant to 664.6 entered on 12.11.25 is vacated.

Judgment is entered for Plaintiff Capital One against Defendant Barbara L Karroll.

Damages of \$2039.53 + \$570 costs for total award of \$2609.53

2.

| CASE #      | CASE NAME                                            | HEARING NAME                                                                                                 |
|-------------|------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|
| CVPS2503476 | ORTEGA, AN INDIVIDUAL VS MARRIOTT INTERNATIONAL, INC | MOTION TO COMPEL VERIFIED RESPONSES TO REQUEST FOR ADMISSIONS SET ONE BY VISTANA CALIFORNIA MANAGEMENT, INC. |

**Tentative Ruling:** If a party fails to provide any response to interrogatories or RFPs, the propounding party may move to compel responses. (C.C.P. §§ 2030.290(b), 2031.300(b).) Additionally, if a party fails to respond to RFAs, the propounding party may move for an order compelling responses or admitting the truth of the matters set forth in the requests. (C.C.P. § 2033.280(b).) There is no meet and confer requirement for any of the above motions.

Here, there is no dispute that Plaintiff failed to provide timely, verified responses to the discovery served by Vistana, including RFAs (nos. 1-24), FROGs (nos. 1.1, 2.1-2.13, 4.1-4.2, 6.1-6.7, 7.1-7.3, 8.1-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1), two sets of SPROGs (nos. 1-62 and 63-76), and RFPs (nos. 1-30). An unverified response is tantamount to no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) Therefore, Defendants have failed to provide timely responses to any of the discovery at issue.

Motion to Compel Verified Responses to Request for Admissions, Set One, GRANTED.

Plaintiff to submit verified responses, without objection, to RFAs 1-24.

Sanctions in the amount of \$335 to be paid to Plaintiff's attorney within 30 days.

Case Management Conference continued to 8.18.26.

The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the